

Non-Disclosure & Data Protection Agreement

CONFIDENTIALITY · DATA CONTROL · DATA SECURITY

This Non-Disclosure & Data Protection Agreement (this “Agreement”) is made on this _____ day of _____, 20____ (the “Effective Date”), by and between:

Sri Ayyan Vidyashram Higher Secondary School, having its principal office at _____ (hereinafter the “School” or “Data Fiduciary”);

and

Infinite Vision, having its office at Ranipet, Tamil Nadu, the developer and provider of the “Schoolnest” school management software (hereinafter the “Service Provider” or “Data Processor”).

The School and the Service Provider are each referred to as a “Party” and collectively as the “Parties.”

BACKGROUND

- A. The School has engaged, or proposes to engage, the Service Provider to provide and support the Schoolnest software (the “Software”).
- B. In the course of providing the Software, the Service Provider may access, store and process confidential information and personal data relating to the School’s students, parents, guardians and staff — including academic, attendance, biometric, fee and financial records.
- C. The Parties wish to record the terms governing the confidentiality, ownership, control and security of such information.

NOW, THEREFORE, in consideration of the mutual covenants set out below, the Parties agree as follows:

1. DEFINITIONS

- 1.1 “**Confidential Information**” means all non-public information disclosed by or on behalf of the School, in any form, including student, parent and staff records, academic and attendance data, biometric data, fee and financial data, contact details, login credentials, and any data entered into, stored in or generated by the Software.
- 1.2 “**Personal Data**” means any information relating to an identified or identifiable individual, including minors, and includes sensitive categories such as biometric and financial information.
- 1.3 “**Processing**” means any operation performed on data, including its collection, storage, use, access, transmission, disclosure and deletion.
- 1.4 “**Applicable Law**” means the Digital Personal Data Protection Act, 2023 and all other laws of India applicable to confidentiality and the protection of data.

2. OWNERSHIP & CONTROL OF DATA

- 2.1 All Confidential Information and Personal Data shall remain the sole and exclusive property of the School. The Service Provider acquires no right, title or interest in such data by reason of this Agreement.

- 2.2** The Service Provider acts solely as a processor on behalf of, and under the documented instructions of, the School, which remains the controller and data fiduciary of such data.
- 2.3** The School shall at all times have the right to access, export and obtain a complete copy of its data in a usable, machine-readable format, without hindrance.

3. PURPOSE & PERMITTED USE

- 3.1** The Service Provider shall use the Confidential Information and Personal Data solely to provide, operate, support and maintain the Software for the School (the “Purpose”).
- 3.2** The Service Provider shall not sell, rent, share, publish, mine, profile or otherwise exploit the data for any other purpose — including advertising, marketing, or training of unrelated systems — without the School’s prior written consent.

4. CONFIDENTIALITY OBLIGATIONS

- 4.1** The Service Provider shall keep all Confidential Information strictly confidential and shall not disclose it to any third party except as expressly permitted under this Agreement.
- 4.2** Access shall be limited to those personnel who need it for the Purpose and who are bound by written confidentiality obligations no less protective than those in this Agreement.
- 4.3** The Service Provider shall protect the data using at least the same degree of care it applies to its own confidential information, and in no event less than a reasonable standard of care.

5. DATA SECURITY MEASURES

The Service Provider shall implement and maintain appropriate technical and organisational security measures, including:

- (a) encryption of data in transit and at rest;
- (b) role-based access controls with unique credentials and least-privilege access;
- (c) secure, access-controlled hosting protected by firewalls and intrusion safeguards;
- (d) regular automated backups with tested recovery procedures;
- (e) audit logs recording access to, and changes in, the data;
- (f) periodic security reviews and prompt application of security updates; and
- (g) confidentiality undertakings and training for all personnel handling the data.

6. DATA LOCALISATION & STORAGE

- 6.1** Personal Data shall be stored on servers located in India, unless otherwise agreed by the School in writing.
- 6.2** The Service Provider shall not transfer Personal Data outside India without the School’s prior written consent and compliance with Applicable Law.

7. SUB-PROCESSORS

- 7.1** The Service Provider shall not engage any sub-processor or third-party vendor to process Personal Data without the School’s prior written consent.
- 7.2** Any permitted sub-processor shall be bound by obligations no less protective than those in this Agreement, and the Service Provider shall remain fully responsible for their acts and omissions.

8. DATA BREACH NOTIFICATION

- 8.1** The Service Provider shall notify the School without undue delay, and in any event within seventy-two (72) hours, of becoming aware of any actual or suspected breach of security affecting the data.
- 8.2** Such notice shall describe the nature of the breach, the data affected and the measures taken or proposed; and the Service Provider shall co-operate with the School, take prompt remedial action, and assist with any notifications required under Applicable Law.

9. COMPLIANCE WITH LAW

- 9.1** Each Party shall comply with Applicable Law, including the Digital Personal Data Protection Act, 2023.
- 9.2** The Service Provider shall process Personal Data only as necessary for the Purpose, in accordance with the School's instructions and Applicable Law, with particular care for the data of minors.

10. PERSONNEL

The Service Provider shall ensure that its employees, contractors and agents with access to the data are bound by written confidentiality obligations and have been made aware of their responsibilities under this Agreement.

11. RETURN OR DELETION OF DATA

- 11.1** Upon termination or expiry of the service arrangement, or upon the School's written request, the Service Provider shall — at the School's option — return all data in a usable format and/or securely and permanently delete it.
- 11.2** Such return or deletion shall be completed within thirty (30) days, and the Service Provider shall certify deletion in writing, save only for copies required to be retained by Applicable Law.

12. AUDIT & ASSURANCE

On reasonable notice, the Service Provider shall provide the School with the information necessary to demonstrate compliance with this Agreement and shall permit reasonable review or audit of its data-handling practices relevant to the School's data.

13. EXCLUSIONS

The confidentiality obligations shall not apply to information that:

- (a) is or becomes publicly available through no fault of the Service Provider;
- (b) was lawfully known to the Service Provider before disclosure, without obligation of confidence;
- (c) is independently developed without use of the Confidential Information; or
- (d) is required to be disclosed by law or court order, provided the Service Provider gives the School prompt prior notice where lawful.

These exclusions do **not** apply to Personal Data, which shall remain protected at all times.

14. TERM & SURVIVAL

- 14.1** This Agreement is effective from the Effective Date and continues for the duration of the service arrangement between the Parties.
- 14.2** The obligations of confidentiality and data protection shall survive termination and continue: in respect of Confidential Information, for three (3) years; and in respect of Personal Data, for as long as the Service Provider holds such data and as required by Applicable Law.

15. REMEDIES

The Service Provider acknowledges that any breach of this Agreement may cause irreparable harm to the School for which monetary damages may be inadequate, and that the School shall be entitled to seek injunctive relief in addition to any other remedy available at law.

16. LIABILITY & INDEMNITY

The Service Provider shall indemnify and hold the School harmless against direct losses, claims and statutory penalties arising from the Service Provider's breach of its confidentiality or data-security obligations under this Agreement.

17. GENERAL

17.1 Entire Agreement. This Agreement constitutes the entire understanding between the Parties on its subject matter and supersedes all prior discussions.

17.2 Amendment. Any amendment must be in writing and signed by both Parties.

17.3 Severability. If any provision is held invalid, the remaining provisions shall continue in full force.

17.4 No Waiver. Failure to enforce any provision shall not constitute a waiver of it.

17.5 Assignment. Neither Party may assign this Agreement without the other's prior written consent.

17.6 Notices. All notices shall be in writing and sent to the addresses stated above.

18. GOVERNING LAW & JURISDICTION

This Agreement shall be governed by and construed in accordance with the laws of India. The courts at Vellore / Ranipet, Tamil Nadu shall have exclusive jurisdiction over any dispute arising out of or in connection with it.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

FOR THE SCHOOL

NAME

DESIGNATION

SIGNATURE & SEAL

DATE

FOR INFINITE VISION

NAME

DESIGNATION

SIGNATURE & SEAL

DATE

WITNESS 1

NAME

SIGNATURE

DATE

WITNESS 2

NAME

SIGNATURE

DATE
